

23CHCV01323 23CHCV01323

County: los-angeles

Division: Civil Law and Motion

Department: F47

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Case Number: 23CHCV01323 Hearing Date: June 29, 2026 Dept: F47

Dept. F47

Date: 5/14/26

TRIAL DATE: 3/1/27

Case #23CHCV01323

MOTION TO
RECLASSIFY

Motion filed on 1/16/26.

MOVING PARTY: Defendants Indu
Devulapalli Reddy and Pradeep Reddy

RESPONDING PARTY: Plaintiffs
Rafael Magdaleno and Margarita Magdaleno

NOTICE: ok

RELIEF REQUESTED: An
order reclassifying this action as a limited jurisdiction matter for failure to
exceed the minimum threshold of \$35,000.00 for an unlimited jurisdiction case.

RULING: The motion is denied.

SUMMARY OF FACTS &
PROCEDURAL HISTORY

This action arises out of a motor vehicle accident that occurred on 6/1/21 between a vehicle driven by Plaintiff Rafael Magdaleno and a vehicle driven by Defendant Indu Devulapalli Reddy while driving on the Interstate 5 on 6/1/21. Plaintiff Magarita Magdaleno has a claim for loss of consortium. Defendant Pradeep Reddy is alleged to be an owner of the vehicle driven by Indu Devulapalli Reddy.

On 5/3/25, Plaintiffs filed this action against Defendants for: (1) Motor Vehicle and (2) General Negligence. On 7/15/25, Defendants answered the complaint.

On 1/16/26, Defendants filed and served the instant motion seeking an order reclassifying this action as a limited jurisdiction matter for failure to exceed the minimum threshold of \$35,000.00 for an unlimited jurisdiction case.

The motion was originally scheduled for hearing on 5/14/26. On 5/13/26, Plaintiffs filed and served a late opposition to the motion. See CCP 1005(b). Due to the late filing of the opposition, the hearing on the motion was continued to 6/29/26. (See 5/14/26 Minute Order). Additionally, Plaintiffs were permitted to file and serve an amended opposition by 5/15/26 and Defendants were permitted to file a reply to the opposition. Id. Defendants were ordered to give notice. Id. There is no evidence in the court file that Defendants provided notice as ordered on 5/14/26. On 5/15/26, Plaintiffs filed and served an amended opposition. Defendants have not filed a reply.

ANALYSIS

First, Plaintiffs' claim in the original late-filed opposition that the Defendants failed to properly serve the motion is without merit. Plaintiffs claim that Defendants improperly served the motion by email only despite there being no prior agreement by Plaintiffs to consent to electronic service and that Defendants failed to include the paralegal and other attorneys from the service list resulting in the hearing not being properly calendared by Plaintiffs' counsel. (See Opposition filed 5/13/26, p.7:9-19; Mustoe Decl. ¶14).

CCP 1010.6(b)(1) provides:

“This

subdivision applies to mandatory electronic service. The court may order electronic service on a person represented by counsel who has appeared in an action or proceeding.

(2) A

person represented by counsel, who has appeared in an action or proceeding, shall accept electronic service of a notice or document that may be served by mail, express mail, overnight delivery, or facsimile transmission.

(3) Before

first serving a represented person electronically, the person effecting service shall confirm the appropriate electronic service address for the counsel being served.

(4) A

person represented by counsel shall, upon the request of any person who has appeared in an action or proceeding and who provides an electronic service address, electronically serve the requesting person with any notice or document that may be served by mail, express mail, overnight delivery, or facsimile transmission.”

(emphasis
added).

Here, Plaintiffs are represented by counsel therefore, they are required to accept electronic service of motion documents.

Additionally, the motion was served on the electronic service address listed for Plaintiffs' counsel in eCourt which is the same electronic address where the Court has been serving notices on Plaintiffs' counsel. (See 8/14/25 Clerks Certificate of Service By Electronic Service). There is no requirement that a party serve notice on multiple email addresses for another party. As such, the Court finds that the motion was properly served.

Plaintiffs' next argument in

the original and amended opposition is that the Court should deny the motion as untimely because it was filed after the time for Defendants to respond to the initial pleading without a showing of good cause. See CCP 403.040(a)-(b). Since the Court is considering Plaintiffs' late opposition, in the interests of justice, it will also consider the motion on its merits despite it being filed after the time for Defendants' response to the complaint.

Cases at law which demand, exclusive of interest, or the value of the property in controversy amounts to thirty-five thousand (\$35,000) or less are limited civil cases. See CCP 86(a)(1).

When it becomes clear, during the course of pretrial litigation, that the matter will necessarily result in a verdict below the superior court jurisdictional amount, and after the court affords the parties an opportunity to contest the transfer, the Court shall transfer the matter to the limited jurisdiction. See Walker (1991) 53 C3d 257, 262. The fact that the trial court may believe that it is highly unlikely that a plaintiff will recover the amount demanded is not sufficient to defeat jurisdiction, unless it appears to a legal certainty that the plaintiff cannot recover the amount demanded. Id. at 268-270; See also Hiona (2020) 48 CA5th 866, 872.

Discovery has revealed that Plaintiff Rafael Magdaleno's special damages for medical treatment amount to \$3,689.00 and that Plaintiff Margarita Magdaleno does not claim physical, mental, or emotional injuries from the incident and her claim is solely for loss of consortium. (Martinez Decl., Ex.A-B). Neither Plaintiff alleges continuing medical treatment. Id. Property damage has already been resolved. (Id., Ex.A). However, it has been held that "[p]ain and suffering are not subject to precise measurement by any scale, and their translation into money damages is peculiarly the function of the trier of the facts." See Walker, supra at 270.

Here, Plaintiffs explain that the medical specials are less than \$4,000.00 because Plaintiff had medical insurance. However, Plaintiffs contend that Plaintiff Rafael Magdaleno continues to suffer from chronic headaches,

difficulty sleeping, attention/focus impairment, mood problems and more as a result of the accident. (See Amended Opposition, p.3:12-23; Mustoe Decl.). As such, Plaintiffs contend that they are likely to obtain a verdict within the jurisdiction of this court. As noted above, Defendants have not filed reply in response to Plaintiffs' oppositions.

The Court finds that Defendants have not met their burden of establishing to a legal certainty that Plaintiffs cannot recover an amount within this court's unlimited jurisdiction.

CONCLUSION

The motion is denied.